

CV-26-001848 ADVANCED RADIOLOGY AND INTERVENTIONAL ASSOCIATES INC vs EOH ACQUISITION GROUP LLC – Defendant’s Motion to Quash Service of Summons for Lack of Personal Jurisdiction, or in the Alternative, Motion to Dismiss or Stay for Forum Non-Conveniens – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Although Plaintiff has presented evidence that Care Well transmitted radiology studies to ARIA, directed payments and communications to California, and maintained a contractual relationship with a California corporation, the controlling authorities establish that these factors are not sufficient to establish Defendant’s purposeful availment of the subject forum for purposes of specific jurisdiction. (Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556; Belmont Industries, Inc. v. Superior Court (1973) 31 Cal.App.3d 281.) The record reflects that the contract was governed by New Jersey law, required New Jersey-licensed physicians, concerned treatment of patients located in New Jersey, and contained no requirement that services be performed from California. The evidence presented shows that Care Well received radiology services for the benefit of its New Jersey hospital operations and New Jersey patients. Plaintiff has not presented evidence showing that Care Well purposefully sought the benefits and protections of California law or otherwise created the type of substantial California connection discussed in Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462. In view of the Court’s findings, above, Defendant’s alternative argument based on forum non conveniens is MOOT. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 2c9f9443539afca3d0fe686972e89eaae7ac738ba14a16e9f0c6d063554b1ca9

CV-26-001848 - ADVANCED RADIOLOGY AND INTERVENTIONAL ASSOCIATES INC vs EOH ACQUISITION GROUP LLC – Defendant’s Motion to Quash Service of Summons for Lack of Personal Jurisdiction, or in the Alternative, Motion to Dismiss or Stay for Forum Non-Conveniens – GRANTED.

Although Plaintiff has presented evidence that Care Well transmitted radiology studies to ARIA, directed payments and communications to California, and maintained a contractual relationship with a California corporation, the controlling authorities establish that these factors are not sufficient to establish Defendant’s purposeful availment of the subject forum for purposes of specific jurisdiction. (Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556; Belmont Industries, Inc. v. Superior Court (1973) 31 Cal.App.3d 281.)

The record reflects that the contract was governed by New Jersey law, required New Jersey-licensed physicians, concerned treatment of patients located in New Jersey, and contained no requirement that services be performed from California. The evidence presented shows that Care Well received radiology services for the benefit of its New Jersey hospital operations and New Jersey patients. Plaintiff has not presented evidence showing that Care Well purposefully sought the benefits and protections of California law or otherwise created the type of substantial California connection discussed in Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462.

In view of the Court’s findings, above, Defendant’s alternative argument based on forum non conveniens is MOOT.

The following are the tentative rulings for cases calendared before Judge David Hood in Department 24: